

SENATE BILL No. 248

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-23.

Synopsis: South Bend Community school corporation. Provides that members of the governing body for the South Bend Community school corporation (school corporation) serving on June 30, 2026, shall become on July 1, 2026, an advisory board to the governing body for the school corporation. Provides that, beginning July 1, 2026, members of the governing body for the school corporation shall be appointed by the secretary of education following a nomination process. Establishes a commission to nominate individuals for the governing body.

Effective: Upon passage.

Rogers, Raatz, Mishler, Donato

January 8, 2026, read first time and referred to Committee on Education and Career Development.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 248

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 20-23-8-5, AS AMENDED BY P.L.184-2023,
2 SECTION 31, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 UPON PASSAGE]: Sec. 5. As used in this chapter, "school
4 corporation" means a local public school corporation established under
5 the laws of Indiana. The term does not include a school corporation
6 covered by IC 20-23-12.1, IC 20-23-17, ~~or~~ IC 20-23-17.2, **or**
7 **IC 20-23-20.**

8 SECTION 2. IC 20-23-15-0.5 IS ADDED TO THE INDIANA
9 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
10 [EFFECTIVE UPON PASSAGE]: **Sec. 0.5. This chapter does not**
11 **apply to the South Bend Community school corporation after June**
12 **30, 2026. A member elected to the South Bend Community school**
13 **corporation pursuant to this chapter before June 30, 2026, shall**
14 **serve as a member of the South Bend Community school**
15 **corporation advisory board pursuant to IC 20-23-20-5 until the**
16 **member's term expires or until the member's term terminates**
17 **under IC 20-23-20-6.**



SECTION 3. IC 20-23-20 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]:

Chapter 20. Appointment of Governing Body Members in South Bend

Sec. 1. As used in this chapter, "commission" means the governing body nominating commission established by section 7 of this chapter.

Sec. 2. As used in this chapter, "fiscal body" has the meaning set forth in IC 36-1-2-6.

Sec. 3. IC 20-23-8 does not apply to the South Bend Community school corporation or the governing body of the South Bend Community school corporation.

Sec. 4. (a) Beginning July 1, 2026, the governing body of the South Bend Community school corporation consists of seven (7) members appointed by the secretary of education from a list of individuals nominated under section 9 of this chapter.

(b) An individual appointed under this section serves a four (4) year term.

(c) A member of the governing body serves at the pleasure of the appointing authority.

(d) A member of the governing body may be reappointed to successive terms.

Sec. 5. The governing body serving on June 30, 2026, shall become on July 1, 2026, an advisory board to the governing body described in section 4 of this chapter. The members of the governing body serving on June 30, 2026, shall on July 1, 2026, become the members of the advisory board. Each member shall serve on the advisory board until the term for which the member was elected before July 1, 2026, expires or until the term terminates under section 6 of this chapter. When the terms of all members of the advisory board have expired, or terminated under section 6 of this chapter, the advisory board is abolished. The advisory board shall not possess any of the power and duties of the governing body. A member of the advisory board may receive compensation for serving on the advisory board.

Sec. 6. (a) If an individual seeks a nomination for appointment by the secretary of education to one (1) of the positions of the governing body described in section 4 of this chapter, the following apply:

(1) An individual seeking a nomination for appointment by the secretary of education to the governing body shall submit



a resume to the commission at a time and in a manner determined by the commission.

(2) An individual described in this subsection must reside within the boundaries of St. Joseph County.

(b) A member of the advisory board described in section 5 of this chapter may seek a nomination for appointment under subsection (a). However, an advisory board member's term shall immediately terminate upon seeking a nomination for appointment.

Sec. 7. (a) There is established a governing body nominating commission.

(b) The fiscal body shall provide all facilities, equipment, supplies, and services necessary for the administration of the duties imposed upon the commission. The members of the commission shall serve without compensation. However, the fiscal body shall reimburse members of the commission for their actual expenses incurred in performing their duties.

Sec. 8. (a) The commission consists of the following nine (9) members:

(1) One (1) member appointed by the mayor of South Bend, who resides within the boundaries of the South Bend Community school corporation.

(2) One (1) member appointed by the St. Joseph County board of commissioners.

(3) One (1) member appointed by the South Bend Education Alliance who resides within the boundaries of the South Bend Community school corporation.

(4) One (1) member appointed by the Community Foundation of St. Joseph County.

(5) One (1) member of the Ivy Tech Community College state board of trustees appointed by the Ivy Tech Community College state board of trustees.

(6) One (1) member appointed by the South Bend Regional Chamber of Commerce, who resides within the boundaries of the South Bend Community school corporation.

(7) One (1) member appointed by the South Bend-Elkhart Regional Partnership, who resides within the boundaries of the South Bend Community school corporation.

(8) One (1) member appointed by the Home Builders Association of St. Joseph Valley, who resides within the boundaries of the South Bend Community school corporation.

(9) One (1) member appointed by the South Bend Area



1 Realtors Association, who resides within the boundaries of the
2 South Bend Community school corporation.

3 (b) A majority of the members appointed to the commission
4 constitutes a quorum.

5 (c) The members of the commission must reside within Indiana.

6 (d) The individual appointed under subsection (a)(6) shall serve
7 as the chairperson of the commission.

8 (e) All appointments to the commission shall be made not later
9 than April 1, 2026. This subsection expires January 1, 2027.

10 Sec. 9. The commission shall:

11 (1) meet at the call of the chairperson to consider the resumes
12 submitted under section 6 of this chapter;

13 (2) interview individuals for nomination at the commission's
14 discretion;

15 (3) nominate at least ten (10) candidates for consideration for
16 appointment under section 4 of this chapter; and

17 (4) submit the names of the individuals nominated under
18 subdivision (3) to the secretary of education for consideration
19 for appointment under section 4 of this chapter not later than
20 June 1, 2026, and before June 1 of each year thereafter in
21 which the term of an individual described in section 4 of this
22 chapter expires.

23 Sec. 10. (a) A vacancy in the office of a member of the governing
24 body shall be filled as soon as practicable after the vacancy occurs
25 in the same manner by the appointing authority. The commission
26 shall nominate at least three (3) individuals per vacancy to the
27 secretary of education for consideration for appointment. An
28 individual filling a vacancy under this subsection serves until the
29 expiration of the term of the member whose position the individual
30 fills.

31 (b) A vacancy in the office of a member of the commission shall
32 be filled in the same manner by the appointing authority that
33 appointed the member whose office is vacant.

34 SECTION 4. An emergency is declared for this act.

